



**153rd GENERAL ASSEMBLY
FISCAL NOTE**

BILL:	SENATE BILL NO. 64
SPONSOR:	Senator Hocker
DESCRIPTION:	AN ACT TO AMEND TITLE 7 OF THE DELAWARE CODE RELATING TO REGIONAL GREENHOUSE GAS INITIATIVE AND CO2 EMISSIONS TRADING PROGRAM AUCTION PROCEEDS.

Assumptions:

1. This Act becomes effective upon signature by the Governor and takes effect on January 1, 2026.
2. This Act requires the Department of Natural Resources and Environmental Control (DNREC) to create and administer a rebate program for Delmarva Power customers. To fund this rebate program, this Act maintains the overall amount of proceeds directed from the Regional Greenhouse Gas Initiative (RGGI) at 2025 levels and directs DNREC to forward proceeds above the 2025 levels to Delmarva Power for the program.
3. This Act further directs Delmarva Power to distribute excess proceeds to Delmarva Power customers in the form of a rebate program to defray the cost of electricity to ratepayers.
4. This Act expands upon the duties of DNREC by requiring DNREC staff to promulgate regulations, negotiate and manage contractual agreements and track, manage, and report expenditures. To implement the provisions of this Act, DNREC anticipates the need for the following resources:
 - a. Reallocation of staff time with recurring costs of \$30,883 including OECs at a rate of 33.34%:
 - i. 0.2 FTE Planner IV - \$19,719
 - ii. 0.1 FTE Principal Planner - \$11,164
5. It is unknown if the RGGI CO2 allowance proceeds will exceed that of the 2025 levels, so it is unknown if this program would move forward in future years.
6. Future year personnel costs are estimated to increase at a rate of 2%.

Cost:

Fiscal Year 2026:	\$30,883
Fiscal Year 2027:	\$31,500
Fiscal Year 2028:	\$32,130

Prepared by Julie Fedele
Office of the Controller General